TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
September 27, 2021
MINUTES

STAFF REPORT

Present: Barry Wolff, Chair, Stephen Duke, Stephen Wood, Aaron Butner, Elliott Barrow, Megan Stevens, Julian Hopkins
Staff: Michael Robertson, Kara Browder, David Pagliarini, Jane Yager-Baumrind
Also: Stephanie Ramia, attorney for Board

Barry Wolff called the meeting to order at 6:00pm

A. Approval of Agenda

- *Mr. Hopkins moved for approval of the agenda. Ms. Stevens seconded the motion. All in favor.*

B. Approval of Minutes

- *Mr. Hopkins moved for approval of the minutes. Ms. Stevens seconded the motion. All in favor.*

C. Public Comment

- There being no comments, Mr. Wolff continued with the agenda.

D. General Correspondence

- There was no correspondence.

E. Explanation of Procedures

- Mr. Wolff reviewed the procedures with the public.

F. Administration of Oath

- Mr. Wolff administered the Oath to those speaking.

G. Business

1. Case V-40-21, Faison Road, TMS# 596-15-00-700. Request for relief from the strict application of §156.173 (B) to allow gravel pervious parking for commercial boat storage. The ordinance requires all parking spaces shall be surfaced with a suitable paving material such as asphalt, concrete or specialty pavers but not gravel or similar material.

- Ms. Browder reviewed staff comments with the Board.

- Mr. Brad Mann and Ms. Kimberly Mann reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for approval of the variance to approve with the following conditions:*
  - *The Town Engineer must approve permeable materials and complete an inspection post-installation to ensure they have been appropriately installed.*
  - *Landscaping to be installed at the end of each parking row and approved by the Town*
  - *If a boat washing area is added, the applicant must receive approval from the Town Engineer to ensure off-flow water is appropriately directed.*

Mr. Hopkins seconded the motion. All in favor.

2. Case V-41-21, 336 Coinbow Drive, TMS# 514-03-00-062. Request for relief from the strict application of §156.225 (C) to allow removal of one (1) historic 40-inch Laurel Oak tree.

This item was withdrawn by staff.

3. Case A-10-21, Mill Street Boutique Hotel, TMS# 517-16-00-058, 057, 034, and 035. Appeal of the Zoning Administrator's determination in the following matters:

- **§156.171 "Accommodations and Lodging," requires that the application provide "1-2" parking spaces per "Guest Room." The nineteen units in Building A contain 32 or more guest rooms; the 8 townhouse units contain 32 or more guest rooms, for a total of 64 Guest Rooms. The project plans provide for 34 parking spaces, violating the Ordinance. Applicant contends that the project is not a permissible use under the current zoning of these parcels (§156.325);**
- **That the project violates both paragraphs of §156.101 (A) and (C); That the project violates the recent BOZA decision not to permit residential uses above three stories. The plan continues to set forth residential balconies on the top floor and other unexplained structures. The shed-like areas on roof facing the pool at 6 and 9 o'clock (p 35 and 57) appear to be future roof top food and beverage structures.**
- **Finally, applicant contends the project violates §156.108 Curb Cuts, Visibility at Intersection, and Pedestrian Access (A)(1)(3)(4) and (B).**

  ZONING RECORD CORRESPONDENCE STAFF BRIEF 1 STAFF BRIEF 2

Mr. Pagliarini, Corporation Counsel, stated that he is representing staff in this matter, so Ms. Ramia will be Counsel for the Board.

Mr. Barrow recused himself due to a conflict of interest.

Justin Lucey, 415 Mill Street, reviewed the request with the Board. He stated that he is representing three interested parties in this matter. He asked that he be afforded additional time to review his request.

Mr. Wolff stated that Mr. Lucey would be limited to five minutes presentation time.

Mr. Lucey asked for additional time. Mr. Wolff denied the request and noted that he would be afforded a rebuttal time.

Mr. Robertson presented staff comments with the Board.

- Ms. Christine Reilly, 304 Lucas Street, suggested that the proposed design does not meet the character of the area. She expressed concern with drainage and that the project would affect the wetlands. She stated that it is a small roadway and expressed concern with additional traffic. She expressed concern parking as well. She suggested that the building is too massive and there is "too much concrete". She suggested that the building should be more in keeping with the "local look" of the Shem Creek area.

- Ms. Ashley Woody, 110 Friend Street, expressed concern with the parking in the area and that this project would exacerbate an already constrained area. She suggested that there is not sufficient parking for the project. She also expressed concern that the required landscaping is encroaching into the right-of-way. She asked that the project should not be able to move forward until they can provide sufficient off-street parking.

- Mr. Charles Lucey, 109 Simmons Street, expressed concern that the project does not fit the character of the neighborhood. He expressed concern with the number of trees that would be removed and that it would negatively affect the ecosystem. He expressed concern with the amount of traffic in the area and that it would exacerbate the traffic. He suggested that the on-street parking for the project would not be in the best interest of the neighborhood and would negatively affect the quality of life.

- Mr. Ross Appel, attorney for CKC Properties, distributed a copy of a letter for the Board to review. He reminded the Board that their role is to determine if the Zoning Administrator's decision was erroneous. He suggested that the Zoning Administrator made an appropriate determination. He suggested that the appeal should be dismissed as it was not submitted in a timely manner and was filed after the 30 day notice requirement. He suggested that Mr. Lucey was in attendance at the April 2021 meeting and filed in August 2021, which is outside of the 30 day requirement. He also suggested that Mr. Lucey lacks standing as an aggrieved party.

- Mr. Collin Colbert, representative for CKC Properties, suggested that the parking requirements were reviewed and approved by Town staff according to the Code of Ordinances. He suggested that the number of rooms was also reviewed and based on the definition, the parking requirements were

determined. He suggested that this is not a short-term rental project as it does not meet the definition of a short-term rental. He suggested that the project is proposed to meet the marketing demands for additional housing. He suggested that the Zoning Administrator decision should be upheld and the appeal denied.

Mr. Gabe Joseph, representative for the property owners, agreed with Mr. Appel regarding the aggrieved parties. He stated that this property has been zoned for several years to allow a boutique hotel use. He agreed with Mr. Appel that Mr. Lucey does not have standing to appeal the decision and read a portion of the S.C. Supreme Court ruling regarding standing for the Board. He suggested that Mr. Lucey's interest is in his desire to purchase the same property. He asked that the staff decision be upheld and the appeal denied.

Mr. Kevin Berry, Earthsource Engineering, clarified some points regarding the parking. He stated that they have been working with staff on this project for the past year. He stated that the current parking requirements is 1-2 spaces per room. He stated that there are 2 spaces per room for building B and C, with 1 space per room for building A. He stated that there are 27 keyed entry rooms and 35 on-sight parking spaces. He stated that the overlay district allows for a 20% reduction in parking that they are not utilizing. He stated that they are also proposing to pave seven on-street parking spaces that does not count toward their parking requirement and is being proposed to help alleviate some of the parking issues. He stated that the Town's ordinances are compatible other municipality requirements except for the City of North Charleston that requires one space for every three rooms. He stated that regarding the curb cut separation, the proposed project is compliant with all of the requirements.

Mr. Losse Knight, 802 Coleman Blvd, stated that he is the architect for the project. He reviewed the proposed building with the Board including that the ground level only has parking due to flood requirements. He stated that the rooftop provides a balcony with a private pool for building A. He stated that building B and C include family units that have open air private stair to a rooftop private balcony. He stated that the attic space would not be occupied.

- Mr. Wolff administered the oath to Mr. Filippo Ravalico. Mr. Ravalico, 1044 Wharf Indigo, commended the Board on their difficult task as members of the Board. He suggested that the Board should proceed carefully and follow their procedure to ensure a fair ruling. He stated that Shem Creek is a unique area and suggested that a special committee could be considered to review development requirements for this unique area.

- Mr. Mike Washburn, principal for 305 Brown Zac, LLC, and owner of one of the properties for the proposed project, stated that while there are some trees being proposed for removal, there are no significant oak trees being removed. He stated that Mr. Lucey owns the remainder of the property in this area. He suggested that this is an appropriate project for this area and asked that the project be allowed to go forward.

- There being no further comments, Mr. Wolff moved to rebuttals.

- Mr. Justin Lucey, 415 Mill Street, suggested that allowing the architect, developer, and engineer to speak during public comment has allowed them additional time, and asked that he be allowed to complete his initial presentation and continued with his presentation.

- Mr. Lucey asked for additional time since the engineer, developer, and architect were allowed to speak. Mr. Wolff answered that they spoke during public comment, which is allowed under the ordinance and bylaws. He stated that no additional time is allowed under the Board's bylaws.

- Mr. Robertson reiterated the issues that are before the Board are outlined on the agenda and as advertised. He suggested that many of the issues outlined by Mr. Lucey are not under the Board's consideration for this issue. He stated that staff provided additional information regarding the exact measurements of the right-of-way and further stated that landscaping is required along the right-of-way in the Boulevard Overlay District. He stated that while provided by staff, these issues were not appealed and are not under consideration by the Board. He stated that he is available to answer any questions.

- There being no further comments, Mr. Wolff closed public comment.

▶ *Mr. Stephen Wood moved to enter into executive session to receive legal advice. Mr. Hopkins seconded the motion. All in favor with Mr. Barrow abstaining.*

The Board convened into executive session at 7:20 pm and reconvened at 7:50 pm. No action was taken during executive session.

▶ *Mr. Wood moved to grant the appeal of the Zoning Administrator's determination regarding §156.171 "Accommodations and Lodging," based on the findings that the Town ordinances define a boutique hotel as having 50 or fewer lodging units, but when defining the parking requirements, the term guest rooms was used; therefore, staff misinterpreted the term "guest room" and the number of parking spaces would be insufficient for this particular property. The other matters before the Board included in this appeal are denied. Mr. Hopkins seconded the motion. All in favor with Mr. Barrow abstaining.*

▶ Mr. Wood left at this time (7:52 pm).

4. **Case V-42-21, 806 Milldenhall Road, TMS# 559-03-00-026. Request relief from the strict application of §156.303 (C) to allow a 5-foot 6-inch front yard encroachment. The ordinance requires a 25-foot front yard setback.**

▶ Ms. Browder reviewed staff comments with the Board.

▶ Ms. Caroline Anderson and Mr. Andy Anderson, owners, reviewed the request with the Board.

▶ There being no comments, Mr. Wolff closed public comment.

▶ *Mr. Hopkins moved to approve the variance for the front porch encroachment based on the findings that they have approval from the HOA and neighboring property owners and considering the odd shape of the lot. Mr. Butner seconded the motion. All in favor.*

5. **Case V-43-21, 520 King Street, TMS# 532-01-00-227. Request for relief from the strict application of §156.119 (G)(2) to allow utilization of a Telecommunications Carrier on Wheels (COW) for a period not to exceed 120 days from October 31, 2021. The ordinance limits the use of COWs for a period not to exceed 120 days following a natural disaster or local emergency declaration. A variance, Case V-16-2021, was approved on May 24, 2021, and the applicants are now requesting an additional 120 days.**

- Ms. Browder reviewed staff comments with the Board.

- Mr. Jonathan Yates, attorney for the applicant, reviewed the request with the Board.

- Mr. Jason Waldon, 705 Simmons Street, expressed concern with the continued utilization of a COW. He suggested that if approved, there should be a strict timeframe put in place, a deadline clearly determined, and that no other extensions be allowed. He stated that another consideration is the Mount Pleasant Waterworks beautification project that cannot be accomplished until the COW is removed.

- There being no further comments, Mr. Wolff closed public comment.

- *Ms. Stevens moved for approval to allow the COW not to exceed 120 days from October 31, 2021 with no other extensions allowed. Mr. Duke seconded the motion. All in favor.*

6. **Case V-44-21, 114 Freeman Street, TMS# 532-05-00-171. Request for relief from the strict application of §156.225 (C) to allow removal of one (1) historic 31.5-inch Laurel Oak tree and one (1) historic 14.5-inch and 15-inch double trunk Live Oak tree.** CORRESPONDENCE

- Ms. Browder reviewed staff comments with the Board.

- Mr. Brandon London, 1835 Omni Blvd, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

Ms. Stevens moved for approval of 31.5" Laurel Oak Tree and double live oak tree based on the findings that in order to receive the best drainage for the lot and based on the location of the lot between the higher lots, the removal is required for the best location of the house on the lot, subject to mitigation for all trees removed. Mr. Butner seconded the motion. Motion passed on a 5 to 1 vote with Mr. Wolff, Mr. Duke, Mr. Butner, Ms. Stevens, and Mr. Hopkins in favor; Mr. Barrow opposed.

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned 8:53 pm.

Submitted by,
L. Lynes
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